

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT NAME
HON. YOLANDA V. TORRES

Date: September 28, 2026

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

#	Case Name	Tentative
1	Loeffler vs. Trabuco Highlands Community Association 2022-01284907 Demurrer to Amended Cross-Complaint CMC	Cross-Defendant Rhino Law Firm's Demurrer to the First Amended Cross-Complaint (FACC) is OVERRULED in part and SUSTAINED in part. Trabuco Highlands concedes its 3rd and 4th causes of action are not proper as to Rhino Law Firm only. Thus, Rhino's demurrer to the 3rd and 4th causes of action is sustained as to Rhino only. Rhino's demurrer as to the 2nd cause of action is overruled. Rhino first argues the FACC fails to specifically request a judicial foreclosure sale and, thus, the cause of action for judicial foreclosure is not sufficiently alleged. However, Rhino fails to include any citation to authority to support this argument. (See Cal. Rules of Court, rule 3.1113(b).) Thus, Rhino has failed to adequately establish this as a ground for demurrer. Additionally, Rhino has not demonstrated the judicial foreclosure claim is barred by the prior filing of the deed of trust from Loeffler to Rhino in 2022 because the FACC alleges that deed is fraudulent and, thus, void. (FACC, ¶

		58.) Therefore, the transfer would have no legal effect and could not take priority over the 2023 notice. Accordingly, Rhino's demurrer to the 2nd cause of action is overruled.
3	Cassab vs. Lake Manor, LLC 2025-01525413 Motion to be relieved as counsel of record	MOTION NO. 1: The motion of attorney Nnogo C. Obiamiwe from Law Offices of Nnogo C. Obiamiwe, APC to be relieved as counsel of record for plaintiff Doris Cassab is GRANTED. Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362. Moving attorney is ORDERED to give notice to client, and file proof of service of the Court's order as entered. Withdrawal will be effective upon filing of proof of service of the order. MOTION NO. 2: The motion of attorney Ogochukwu Victor Onwaeze from Onwaeze law Group, APC to be relieved as counsel of record for plaintiff Doris Cassab is GRANTED. Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362. Moving attorney is ORDERED to give notice to client, and file proof of service of the Court's order as entered. Withdrawal will be effective upon filing of proof of service of the order.
4	McCrea vs. Riemann 2025-01485707 Motion to be relieved as counsel of record	The motion of attorney Stanley M. Gordon from Gordon & Reynolds to be relieved as counsel of record for defendant 520 Capital Fund 2 LP is GRANTED. Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362. Moving attorney is ORDERED to give notice to client, and file proof of service of the Court's order as entered. Withdrawal will be effective upon filing of proof of service of the order.
5	Quick Bridge Funding, LLC vs. Axe Tactical LLC 2025-01480360	The motion of attorney Anne K. Edwards from Smith, Gambrell & Russell, LLP to be relieved as counsel of record for defendant Axe Tactical 2.0 LLC is GRANTED. Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362.

	Motion to be relieved as counsel of record	Moving attorney is ORDERED to give notice to client, and file proof of service of the Court's order as entered. Withdrawal will be effective upon filing of proof of service of the order.
6	Herbas vs. Ean Holdings, LLC 2023-01360506 Motion to Dismiss	Defendant Lauren A. Boisdore's (erroneously sued as Lauren Ashley Brisdore) motion to dismiss Plaintiff Adrien Herbas' complaint pursuant to Code of Civil Procedure section 2023.010 et seq. for failure to appear for his Court-ordered deposition is DENIED, in part, and GRANTED, in part. Defendant Lauren A. Boisdore moves to dismiss plaintiff Alejandra Ortiz's Complaint, for her failure to appear for her Court-ordered deposition on 1/16/26. As an initial matter, on 6/1/26, after the parties reported to the Court that they were trying to settle this action, the Court stayed its previous order granting Defendant's request for sanctions against Plaintiff in the reduced amount of \$1,723.70 payable within 30 days. To date, Plaintiffs have not filed a dismissal of the entire action. Thus, pursuant to the Court's 6/1/26 Order, the stay is lifted, Plaintiff is ORDERED to pay the above sanction within 30 days starting 9/28/2026, as well as the ordered sanctions in the ruling below: "[T]erminating sanctions are to be used sparingly, only when the trial court concludes that lesser sanctions would not bring about the compliance of the offending party." (<i>R.S. Creative, Inc. v. Creative Cotton, Ltd.</i> (1999) 75 Cal.App.4th 486, 496.) "The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. 'Discovery sanctions "should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled but denied discovery." ' [Citation.] If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. 'A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.' [Citation.]" (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992 (<i>Doppes</i>) (Footnote 5 omitted.).)

		Before issuing terminating sanctions, the court should usually grant lesser sanctions such as orders staying the action until the derelict party complies, or orders declaring matters as admitted or established if answers are not received by a specified date, often accompanied with costs and fees to the moving party. (<i>Deyo v. Kilbourne</i> (1978) 84 Cal.App.3d 771, 796.) Plaintiff violated the Court's 12-30-25 Order compelling Plaintiff to appear for her deposition by no later than 1/30/26. (Canale Decl., ¶ 3, Ex. A; ROA 170.) Based on Plaintiff's email stating Plaintiff was available on any day except 1/13/25, Defendant noticed Plaintiff's deposition for 1/16/26. (Canale Decl., ¶¶ 4-5, Exs. B-C.) However, Plaintiff failed to appear for her deposition. (Canale Decl., ¶ 6, Ex. D.) The moving party must not only show that there was violation of the court's order, but that such violation was willful. (<i>Doppes, supra</i>, 174 Cal.App.4th at 992.) Although Defendant has shown Plaintiff failed to comply with the Court's 12-30-25 Order, there is no showing that the violation was willful. Further, there has been no incremental approach to sanctions and lesser sanctions of issue, evidentiary, and/or monetary sanctions are appropriate at this time. Court's Ruling: Defendant's request for terminating sanctions is DENIED. Sanctions: Defendant requests sanctions in the amount of \$2,573.70 calculated as follows: \$300/hr. x. 6.4hrs.; plus \$60 filing fee and \$653.70 for a Certificate of Non-Appearance. The amount requested is excessive and is reduced to \$1,313.70 (\$300/hr. x 2hrs. + \$60 filing fee + \$653.70).] Court's Ruling: Defendant's request for monetary sanctions is GRANTED in the reduced amount of \$1,313.70. Plaintiff is ORDERED to pay \$1,313.70 in monetary sanctions to Defendant within 20 days' notice of this ruling. Plaintiff is ORDERED to comply with the Court's 12-30-25 Order and appear for her deposition within 20 days' notice of this ruling. The Court warns Plaintiff that failure to comply with the Court's Order will result in more severe sanctions, which may include terminating sanctions.
7	Juliar vs. Providence St. Jude Medical Center 2022-01280961	Defendant St. Jude Hospital's Motion to Tax Costs is GRANTED.

Motion to Tax Costs	Defendant moves to tax Plaintiffs' costs on appeal pursuant to California Rules of Court, rule 3.1700(b)(1), which provides: Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6(a)(3). Here, Plaintiffs filed and served their memorandum of costs on appeal electronically on 6/24/26. (ROA 387.) Defendants timely filed and served the instant motion on 7/9/26. (ROA 392.) "If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary." (<i>Jones v. Dumrichob</i> (1998) 63 Cal.App.4th 1258, 1266; see <i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 131 [party seeking to tax deposition of designated expert has burden to prove cost unnecessary at time incurred or unreasonable].) Once the opposing party makes such a showing in support of a motion to tax costs, the challenged items are put in issue and the burden shifts back to the party claiming them as costs. (<i>Ibid.</i>) But conclusory assertions alone are not enough to cause this shift to happen. "[I]t is not enough for the losing party to attack submitted costs by arguing that he thinks the costs were not necessary or reasonable. Rather, the losing party has the burden to present evidence and prove that the claimed costs are not recoverable." (<i>Seever v. Copley Press, Inc.</i> (2006) 141 Cal.App.4th 1550, 1557; see also <i>Jones, supra</i>, 63 Cal.App.4th at p. 1266 [mere statements in points and authorities and declaration of counsel insufficient to rebut prima facie showing].) Here, Plaintiffs' memorandum of costs is verified by Plaintiffs' counsel, Ryan P. Mahoney. As such, the memorandum of costs is prima facie evidence of the propriety of the costs set forth therein. Defendant seeks to strike or tax Plaintiffs' memorandum of costs as follows: Item 1: Filing Fees: Plaintiffs claim \$1306.87 for filing fees. Defendant contends this appears excessive because the filing fee for a notice of appeal in a California civil case \$775. Defendant therefore contends the claimed amount
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		should be reduced by \$531.84 for the amount that exceeds the filing fee of \$775. Item 3: Preparation of Reporter's Transcript: Plaintiffs claim \$1406.15 for the preparation of a reporter's transcript. Defendant contends this cost is improper because there was no court reporter at the hearing on the motion for summary judgment (the subject of the appeal) and Plaintiffs did not designate a reporter's transcript on appeal. Defendant therefore contends the entire amount Plaintiffs claim for this item should be stricken. Item 5: Production of Additional Evidence: Plaintiffs claim \$151.35 for production of additional evidence. Defendant contends there was no production of additional evidence on appeal; therefore, the entire amount Plaintiffs claim for this item should be stricken. The court finds Defendant has met its burden. Defendant has presented sufficient evidence to prove the claimed costs for items 1, 3 and 5 were not necessary or reasonable. Plaintiffs concede there was no report's transcript designated in this action and for purposes of the appeal. Plaintiffs explain they inadvertently included a reporter's transcript cost item due to a bookkeeping error. Plaintiffs do not specifically address Defendant's objections to items 1 and 5. Plaintiffs expressly state they do not oppose the motion. Therefore, the motion is granted.
8	Davis vs. Pfaffly 2022-01294841 Motion for Protective Orders Motion to Compel Further responses to Form Rogs Further responses to special rogs Compel Production Compel requests for admission	Motions 1-4: Plaintiff's Motions for Protective Order, filed on 4/30/36 under ROAs 215, 216, 217, and 218, are MOOT in light of Plaintiff's notice of withdrawal of the motions filed on 9/21/26. Motion No. 5: Defendant's Motion to Compel Plaintiff's Further Responses to Requests for Production, Set Two (RFPs), filed under ROA 293, is GRANTED. Defendant moves for an order compelling responses and documents regarding RFPs 32-52 and seeks sanctions of \$1,635.00. The RFPs generally seek documents supporting Plaintiff's contentions about the subject fire which Plaintiff alleges caused her damages.

	In response to the RFPs, Plaintiff asserts objections and states she is “unable to produce documents on this request as drafted.” Plaintiff asserts the RFPs are duplicative/repetitive of previous requests, improperly seek responses regarding contentions, and are overbroad. The RFPs are not identical to prior RFPs and are reasonably calculated to lead to discovery of admissible evidence. (Code Civ. Proc. § 2017.010.) Plaintiff shall serve further responses and produce documents to the extent responsive documents are in her possession, custody, or control and shall specify which documents, if any, exist but are not in her possession. Plaintiff’s written responses must comply with Code of Civil Procedure sections 2031.210, 2031.220, and 2031.230. Defendant’s request for sanctions is denied because Defendants’ counsel did not exhaust the meet and confer process before filing the motion. Defendant’s counsel should have engaged in additional efforts to meet and confer, including a telephonic, video, or in-person conference with Plaintiff as required under Code of Civil Procedure section 2016.040. Plaintiff shall serve further responses and produce documents within 30 days. Motion No. 6: Defendant’s Motion to Compel Plaintiff’s Further Responses to Requests for Admission, Set Two (RFAs), filed under ROA 301, is GRANTED. Defendant seeks further responses to RFAs 8-35, which relate to the parties’ dispute about the subject fire and its cause. Plaintiff’s responses generally object and state she “lacks sufficient information to admit or deny the Request, based on the form of the Request.” Plaintiff argues the RFAs are duplicative and redundant or previous RFAs. Plaintiff has not shown she is unable to admit or deny the RFAs – rather she refuses to admit or deny because she believes they are cumulative. Defendant has shown RFAs are not identical to prior RFAs and are reasonably calculated to lead to discovery of admissible evidence. (Code Civ. Proc. § 2017.010.) The request for sanctions is denied for the reasons set out above.
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		Plaintiff shall serve further responses within 30 days compliant with Code of Civil Procedure section 2033.210 and 2033.220. Motion No. 7: Defendant's Motion to Compel Plaintiff's Further Responses to Form Interrogatories, Set Two (FROGs), filed under ROA 305, is GRANTED. This dispute concerns FROG 17.1, which seeks information regarding each of Plaintiff's responses to RFAs which are not an unqualified admission. In light of the order compelling further responses to RFAs, Plaintiff must also serve responses to FROG 17.1 to the extent any of her responses are not unqualified admissions. The request for sanctions is denied for the reasons set out above. Plaintiff shall serve further responses within 30 days. Motion No. 8: Defendant's Motion to Compel Plaintiff's Further Responses to Special Interrogatories, Set Two (SPROGs), filed under ROA 297, is GRANTED. Defendant seeks further responses to SPROGs 34-63, which relate to the subject fire. Plaintiff again asserts the requests are overbroad and redundant of prior requests. Plaintiff has not shown the SPROGs are redundant and Defendant has shown they are reasonably calculated to lead to discovery of admissible information regarding the subject fire. (Code Civ. Proc. § 2017.010.) The request for sanctions is denied for the reasons set out above. Plaintiff shall serve further responses within 30 days.
9	Azami vs. LAD Mission Viejo-JLR, Inc. 2024-01374785 Motion for Summary Judgment and/or Adjudication	Defendant LAD Mission Viejo-JLR, Inc.'s Motion for Summary Judgment or in the Alternative Summary Adjudication is GRANTED in part as to the 4th and 5th causes of action and DENIED as to summary judgment and the 1st-3rd causes of action. The Court exercises its discretion to consider Plaintiff's improperly formatted objections. (See <i>Herrera v. Deutsche Bank National Trust Co.</i> (2011) 196 Cal.App.4th 1366, 1378.)

		Plaintiff's first objection is overruled. The statement relates to Defendant's state of mind in believing US Bank had the correct value rather than asserting US Bank in fact did have the correct value. Plaintiff's second and third objections are sustained. "At the trial or any other hearing in the action, so far as admissible under the rules of evidence, the propounding party or any party other than the responding party may use any answer or part of an answer to an interrogatory only against the responding party." (Code Civ. Proc., § 2030.410.) Plaintiff's fourth objection is sustained. Defendant failed to include the deposition pages at issue in its exhibits. The Court exercises its discretion to consider summary adjudication even though Defendant failed to strictly comply with the procedural requirement of California Rules of Court rule 3.1350(b). "Moreover, even if some additional headings had been required, the court's power to deny summary judgment on the basis of failure to comply with California Rules of Court, rule 3.1350 is discretionary, not mandatory. " (<i>Truong v. Glasser</i> (2009) 181 Cal.App.4th 102, 118.) <u>Merits</u> 1st Cause of Action – Violation of the Rosenthal Act "Any action under this section may be brought in any appropriate court of competent jurisdiction in an individual capacity only, within one year from the date of the occurrence of the violation." (Civ. Code, § 1788.30(f).) Defendant claims the cause of action is barred by the statute of limitations because it claims the only information Plaintiff identified that was reported to the credit reporting agencies was the check for the credit report. (UMF 5.) Thus, Defendant claims the date to be used is the purchase date of June 16, 2022. However, Defendant's cited evidence does not support its initial claim that Plaintiff is only claiming the credit check harmed her credit. Plaintiff also claims her credit was affected by her loan being sent to the collections department. (Azami Depo., 36:1-20.) Defendant offers no evidence to disprove or provide a defense to this part of the claim Thus, Defendant has failed to meet its initial
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	burden. Therefore, summary adjudication is denied as to the 1st cause of action. 2nd and 3rd Cause of Action – Violation of the Fair Credit Reporting Act and the Consumer Credit Reporting Agencies Act "With respect to furnishers of information to consumer credit reporting agencies, like UDR and First Advantage Corporation, section 623 of the FCRA imposes two general requirements: the duty to provide accurate information and the duty to investigate the accuracy of reported information upon receiving notice of a dispute." (<i>Sanai v. Saltz</i> (2009) 170 Cal.App.4th 746, 763-764.) "A person shall not furnish information on a specific transaction or experience to any consumer credit reporting agency if the person knows or should know the information is incomplete or inaccurate." (Civ. Code, § 1785.25.) Defendant's argument against the 2nd cause of action fails for the same reason. Defendant claims it had no duty to investigate and provided accurate information. Defendant claims it only checked Plaintiff's credit. However, Defendant again fails to address the claim Plaintiff's credit was affected by Defendant transferring the loan to collections. Additionally, the argument against the 3rd cause of action fails for failing to address the same claim. Thus, Defendant has failed to meet its initial burden. Therefore, summary adjudication is denied as to the 2nd and 3rd causes of action. 5th Cause of Action (incorrectly labeled Count VI) – Violation of the Consumer Legal Remedies Act "The unfair methods of competition and unfair or deceptive acts or practices listed in this subdivision undertaken by any person in a transaction intended to result or that results in the sale or lease of goods or services to any consumer are unlawful" (Civ. Code, § 1770(a).) " 'Consumer' means an individual who seeks or acquires, by purchase or lease, any goods or services for personal, family, or household purposes. (Civ. Code, § 1761(d).) Defendant has sufficiently met its burden of showing Plaintiff cannot show she is a consumer within the meaning of the CLRA. In response to special interrogatory
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	no. 21, Plaintiff admits she “had already leased a new car from Santa Monica and [bought] the Mission Viejo vehicle to sell.” In response to no. 31, Plaintiff stated she “planned to sell the Range Rover.” Finally, in Plaintiff’s deposition, Plaintiff admits she had no recollection of driving the vehicle after purchasing it in 2022. (Azami Depo. 31:15-32:6.) Thus, the burden shifts to Plaintiff to demonstrate there is an issue of material fact as to whether she constituted a consumer within the meaning of the CLRA. Plaintiff has failed to satisfy her burden of showing there is an issue of material fact. Plaintiff points to the lease which stated the vehicle was primarily being used as a personal vehicle. The lease was a separate transaction from the purchase. Additionally, the characterization of the vehicle in any contract does not change how Plaintiff intended to use the vehicle, which she stated numerous times was to sell rather than use herself. Further, Defendant’s knowledge of Plaintiff’s intentions are immaterial to whether Plaintiff is a consumer under the CLRA. Thus, summary adjudication is granted as to the 5th cause of action (labeled count VI). 4th Cause of Action (incorrectly labeled Count V) - Fraud “The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or scienter); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (<i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 638.) Defendant has met its initial burden of showing it did not have the requisite knowledge of falsity to constitute fraud. Plaintiff alleges Defendant intentionally misrepresented the residual value of the vehicle at time of purchase by asking the lender, US Bank, for the fair market value of the vehicle rather than the loyalty payoff. Rudkin, Defendant’s general manager at the time of purchase stated in his declaration Defendant did not have a copy of the lease at the time of purchase. (Rudkin Decl., ¶ 4.) Thus, Defendant contacted US Bank to request the correct residual value because they were the holders of the lease contract. (Rudkin Decl., ¶¶ 6-7.) Defendant relied upon the number provided by US Bank and Rudkin claims
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		Defendant had no reason to believe the number was incorrect. (Rudkin Decl., ¶ 8.) Thus, the burden shifts to Plaintiff to demonstrate there is an issue of material fact as to whether Defendant knew the residual value provided was false at the time of purchase. Plaintiff fails to meet her burden. Plaintiff concedes she “does not dispute Defendant was not aware of the correct residual value at the time of the transaction” This alone is sufficient to grant summary adjudication. Further, Plaintiff only disputes Defendant was the responsible party for requesting the fair market value rather the loyalty payoff from US Bank to use as the residual value. However, Defendant requesting due to a mistake is different than intentionally requesting the incorrect figure. Plaintiff presents no evidence Defendant knew it should have requested the loyalty payoff rather than the fair market value. Thus, summary adjudication is granted as to the 4th cause of action (labeled count V).
10	Tsirtsis vs. Pacific Hospital Long Beach 2021-01234325 Motion for Sanctions Motion for Summary Judgment/Adjudication	Defendant Dr. Ian Armstrong’s Motion for Summary Judgment/Adjudication is GRANTED. Defendant moves for summary judgment or adjudication as to Plaintiff’s First Amended Complaint (FAC). The FAC alleges claims for (1) recovery of stolen property, (2) medical battery, and (3) unfair competition, arising from an alleged bribe and kickback scheme between his doctors and a spine surgical center, resulting in alleged medically unnecessary procedures. The FAC does not identify specific procedures which were allegedly unnecessary. Defendant asserts summary judgment is required based on the Court’s 12/29/25 order deeming admitted Defendant’s requests for admissions to Plaintiff regarding essential elements of Plaintiff’s claims. Plaintiff filed a motion to withdraw the admissions on 6/4/26, nearly five months after Defendant’s MSJ was filed. On 7/6/26, this Department continued the hearing on the summary judgment motion to provide for the discovery judge, Judge De La Cruz, to rule on Plaintiff’s Motion to Withdraw Deemed Admissions, which was set for hearing on 7/22/26. However, on 7/20/26, Judge De La Cruz continued the hearing on that motion to 8/26/26 because the parties’ Joint Letter Brief filed on 7/13/26 exceeded the page limit. Therefore, this Department continued the hearing to the present date.

	On 8/26/26, Judge De La Cruz denied Plaintiff's motion to withdraw the admissions which form the basis for Defendant's MSJ. Plaintiff has been deemed to have admitted essential elements of his claims are not present. (Separate Statement of Undisputed Facts 7-19.) Plaintiff's initial opposition argues that the deemed admissions should be withdrawn, but that issue has been conclusively decided against Plaintiff. In the 7/6/26 minute order, the Court allowed the parties to submit supplemental briefs, not to exceed five pages each, no later than 7/24/26. The parties filed additional briefs subsequent to Judge De La Cruz's 8/26/26 order, which were not expressly authorized by this Court. Plaintiff's 8/31/26 supplemental opposition also exceeds the page limit of the supplemental brief allowed in the 7/6/26 order by 8 pages. Although the Court is not required to consider the additional briefs, even if the Court considers them, they do not demonstrate a triable issue of fact. In Plaintiff's amended opposition filed on 8/31/26, Plaintiff argues that although the RFAs are deemed admitted, the admissions are narrower than Defendant argues and do not conclusively dispose of Plaintiff's claims. Plaintiff's admissions show that moving Defendant never met Plaintiff, never communicated with Plaintiff, and never performed surgery on him, that the surgeries performed were medically necessary, that Defendant did not commit medical battery, and Defendant did not violate Penal Code section 496(a), among other admissions. Plaintiff argues the admissions do not encompass the allegation that Defendant aided other Defendants in receipt of money derived from the alleged kickback scheme, nor do they address other procedures which occurred at facilities other than Pacific Hospital of Long Beach. Finally, Plaintiff argues that although he admitted there were no damages suffered, he may still be entitled to restitution under the UCL. The admissions conclusively demonstrate Defendant did not engage in the wrongful conduct alleged in the FAC under the first, second, or third causes of action related to medical battery, lack of consent, or theft of Plaintiff's property. The Court is not required to consider new theories of liability which were not alleged in the FAC or raised in the initial opposition. However, even considering
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		Plaintiff's new theories, they are insufficient to demonstrate triable issue of fact at this stage in light of the broad admissions which have been established against Plaintiff. Motion No. 2: Plaintiff James Dimitri Tsirtsis, aka Dimitrios Tsirtsis's Amended Motion for Sanctions is DENIED. Plaintiff seeks sanctions against Defendant and his counsel under Code of Civil Procedure section 128.7 for filing an unmeritorious motion for summary judgment and related litigation conduct. As discussed above, the summary judgment motion has merit. Plaintiff has not shown Defendant or his counsel engaged in wrongful conduct in discovery or related to the motion. Therefore, the motion for sanctions is denied.
11	All Inclusive Insurance Services, LLC vs. EOS Organization, LLC 2023-01310746 Motion to Strike Answer	The Motion to Strike (ROA 415) filed on September 8, 2026, is moot in light of the Court's ruling on September 14, 2026. The Court notes a Notice of Ruling was filed on September 18, 2026 (ROA 422). On September 28, 2026, the Court will inquire with counsel as to further status and selecting a future status conference date.